

09. 24.08.2020

This matter is taken up through video conferencing.

This is an application under Sec.439 Cr.P.C. for bail and the offence alleged is under Sec.21(b) of the NDPS Act.

Heard learned counsel for the petitioner as well as learned counsel for the State-opposite party.

It is submitted on behalf of the petitioner that the petitioner is inside custody since 28.1.2020 and the total quantity of alleged contraband brown sugar is weighing 8.30 grams. It is also submitted that the wife of the petitioner has filed an affidavit dated 10.8.2020 stating that the petitioner is not the accused in Ranpur P.S. Case No.24/2020. Therefore, it is false to say that the petitioner is a habitual offender as he has been taken on remand in Nayagarh P.S. Case No.164/2019 without any basis.

Considering the circumstances of the case, period of detention of the petitioner inside custody and the nature of offence involved, it is directed to release the petitioner on bail in connection with Ranpur P.S. Case No.28/2020 corresponding to Spl. G.R. Case No.12/2020 on such terms and conditions to be fixed by the learned Special Judge, Nayagarh as he deems just and proper including the condition that the petitioner shall not be involved in any other offence while on bail.

BLAPL is accordingly disposed of.

Urgent certified copy of this order be granted on proper application.

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B.P. Routray, J.